

Council Meeting

April 26, 2023

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Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

The Claremont City Council held a meeting on Wednesday, April 26, 2023, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
Ward II Councilor Scott Pope - Absent
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Spencer Batchelder
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

AGENDA CHANGES

Mayor Girard noted there were a few agenda changes. Agenda items A. and C. will be removed. Item C. will come back at a future date, and item A. does not need to be addressed at the moment.

Mayor Girard requested to Suspend Council Rules and add an agenda item under old business prior to Councilor Hearing; the acceptance of a Council resignation. Assistant Mayor Matteau seconded the request, all were in favor.

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Matteau and seconded by Councilor Koloski to accept the minutes of the April 12, 2023, City Council meeting.

Voice vote:

O’Hearne – yes

Batchelder - yes

Stone - yes

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Matteau - yes

Koloski - yes

Limoges – yes

Mooshian - yes

Girard - yes

Motion carried 8-0

MAYOR'S NOTES

Mayor Girard announced the celebration of two director's retirements. Fire Chief Burr, and Finance Director Richmond. Mayor Girard then read each a proclamation.

Mayor Girard asked for a moment of silence in remembrance of citizen Bernie Fulta who passed away earlier in the month.

Mayor Girard mentioned this Saturday, Sugar River Rotary Club is hosting a recycling day at Claremont Savings Bank from 9am to 12pm.

Turning Points Network is holding a 5k fun run and walk this Saturday starting at 9am at the Middle School.

On May 1st the First Congregation Church at 72 Pleasant Street is hosting a breakfast at the church, tickets are on sale online or directly from a church member.

May 1-5 the City of Claremont Spring Clean-up Program will operate for one week. Leaves and grass clippings must be put into compostable paper bags and left at curbside.

CITY MANAGER'S REPORT

Manager Manale noted four negotiations have been completed, and will bring the contracts to the Council for the second meeting in May.

Proposed budget will go out on May 1st.

The Sullivan Stack demolition will continue in May or June.

Main and Chestnut Street building removal RFQs are going out next week.

The Parks and Recreation Department have been looking at various sites for the City's first dog park, there should be an update on location at next council meeting.

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Councilor Koloski asked if there were any trainings for the demolition properties for the Fire Department.

CITIZEN'S FORUM

Mayor Girard reminded all that each citizen can speak for a total of five minutes on non-agenda items.

Roberta Hood, Ward 1, shared concern for handicap citizens and asked for an update. Manager Manale stated there is allocated ARPA money for handicap upgrades and is going out to bid.

OLD BUSINESS

Council Resignation

Mayor Girard stated he received a resignation from Scott Pope as Ward II Councilor.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to accept the resignation of Scott Pope, Ward II Councilor.

Voice vote:

O'Hearne – yes

Batchelder - yes

Stone - opposed

Matteau - yes

Koloski - opposed

Limoges - yes

Mooshian - yes

Girard - yes

Motion carried 6-2

Councilor Hearing (Mayor/City Council)

Mayor Girard noted this topic was from February 1, 2023 and was then revisited on February 8th, 2023.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to rescind the February 8th, 2023 Vote removing Councilor James Contois from Council for dereliction of duty and restore Mr. Contois to his Council seat as a Ward II Councilor.

Roll call:

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Mooshian - yes

Limoges - yes

Koloski - no

Matteau - yes

Stone - no

Batchelder - yes

O'Hearne -no

Girard - yes

Motion carried 5-3

Councilor Contois took his Oath of Office, read by City Clerk, Gwen Melcher.

NEW BUSINESS

Ordinance 607 LUCT – First Reading – Public Hearing

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-THREE

ORDINANCE #607

Conservation Commission Ordinance Amendment

The City of Claremont Ordains:

Part 1, Chapter 2, Article II, Division 3, Sec. 2-55 of the Claremont City Code is hereby amended as follows:

Section 1.

Sec. 2-55- Conservation Fund

Any monies received by the conservation commission shall be placed in a conservation fund and allowed to accumulate from year to year, and such monies may be expended from such fund for purposes consistent with the stated purposes of this division. While the city may also make appropriations to the conservation fund, the commission shall limit its administrative expenditures for clerks or other employees to those appropriations so designated by the city council, and any unexpended balance shall lapse in accordance with city budget procedures. All monies maintained or expended by the commission shall be in accordance with the accounting procedures of the city.

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All Land Use Change Tax receipts by the City of Claremont shall be delivered to the Conservation Fund. The Finance Department shall transfer, on a quarterly basis, the balance in the Land Use Change Tax Fund to the Conservation Fund.

Section 2. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 3. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 4. Effective Date

This Ordinance shall take effect and be enforced immediately upon passage.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to pass Ordinance 607 to a second reading.

Assistant Mayor Matteau read the explanation of proposed action into the record.

Mayor Girard opened up public hearing.

deForest Bearse shared concern over the language in the Ordinance for the Conservation fund lapsing, and noted an operating budget could be subject to lapse.

Director Richmond noted this section referred to is appropriation funding, those would lapse at the end of a fiscal year, and fall into a fund balance.

Councilor Koloski asked if Ms. Bearse is speaking as the City Planner or as a Conservation liaison.

Gary Dickerman Ward 3, also shared a concern over the Ordinance and noted conservation funds are by state statute.

Councilor Koloski stated he was not certain the Council should move on the Ordinance.

Mayor Girard closed the public hearing.

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Roll call:

Mooshian – yes

Contois- yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O’Hearne -yes

Girard - yes

Motion carried 9-0

Pleasant St. Overweight Truck Signage

Chief Wilmot explained to Council there are two separate issues: weight limits and the ordinance being violated.

A TAC meeting is set for Friday May 5th and Chief Wilmot is prepared to make a recommendation on weight.

Chief Wilmot noted there has been several complaints about Pleasant Street, and an informal traffic study took place. Chief reported four violations (one per hour) and related the issue to signage and noted the City could benefit from more signage, Council was in agreement that additional signage, and illuminated signage could be useful.

Budget Hearing Schedule

The Claremont City Council will hold Budget Meetings in the Council Chambers of City Hall on the following dates.

May 10, 2023. (Wednesday), 6:30 p.m. regular Council meeting

- Preliminary Budget Discussion
- Assessing
- Welfare
- Library
- Elections
- Debt Retirement (Debt Service)
- Policy
- Outside Agency Request

May 20, 2023 (Saturday), 8:30 a.m. to 3:30 p.m.

- Fire

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- Airport
- Planning & Development
- TIFD-Downtown
- Finance/IT
- City Administration (Finance)
- General Services
- Police
- Communication 911
- Sanitation (Transfer Station)
- Cemetery
- Streets & Roads (Highways)
- Parks
- CSB Community Center-Recreation
- Municipal Complex (Maintenance)

May 24, 2023 (Wednesday), 6:30 p.m. regular Council meeting

- General Fund Revenue
- Water Fund Budget
- Sewer Fund Budget

June 14, 2023 (Wednesday), 6:30 p.m. regular Council meeting

- Encumbrance Budget

June 28, 2023 (Wednesday), 6:30 p.m. regular Council meeting

- PUBLIC HEARING AND VOTE – 2023 BUDGET

Acceptance of Multi-Year Lease for Vehicles

Director Richmond noted this motion is for the current budget cycle we are in, and was voted on last year.

Motion to Accept Multi-Year Lease for Vehicles

The Claremont City Council hereby authorizes the City Manager to enter into a multi-year lease agreement for 4 – Vehicles for Police, 1- Pick-Up Truck -Water, 2 – F600 Pick-up Trucks with Plow, Wing, and Sander Box - Highway, 1- Tractor for Sewer Department, in the amount not to exceed \$657,000 the expenditure for the first year of the lease being \$124,216.78; said costs have been raised and

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appropriated in the 2023 budget. The proposed lease agreement contains a
termination clause in the event of non-appropriation of sufficient funds for any
subsequent year of lease.

A motion was made by Councilor Batchelder and seconded by Councilor Limoges to pass motion to accept multi-year lease for vehicles.

Roll call:

Mooshian – yes

Contois- yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O’Hearne -yes

Girard - yes

Motion carried 9-0

Transfer Funds from Policy to Parks Department

Motion to Transfer Funds Between Departments

The Claremont City Council, pursuant to Article III, Section 45 of the Claremont City Charter, hereby authorizes the City Manager or his designees to transfer the following sums of money between departments, such funds having been raised and appropriated in the 2023 City budget.

Transfer **from:** 001-411-411992-0000 Encumbrance – Prior Year \$15,000

Transfer **to:** 001-481-481510-0000 Building M & R \$15,000

A motion was made by Councilor Limoges and seconded by Councilor Batchelder to authorize the City Manager or his designees to transfer the following sums of money between Policy to Parks and Recreations Departments, such funds having been raised and appropriated in the 2023 City budget.

Roll call:

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Mooshian – yes

Contois- yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O’Hearne -yes

Girard - yes

Motion carried 9-0

Resolution 2023-29 Lead Line Replacement – Public Hearing

Director Gleeson explained that Resolution 2023-29 is in front of the Council for a 2/3 vote for approval for the final application. This is through DES for the Drinking Water State Revolving Fund.

Director Gleeson also explained this is for the North and Main Project, and in order to get the final application in, a vote to apply, accept, and expend the grant is needed.

RESOLUTION 2023-29

Submission of a Funding Application to the Drinking Water State Revolving Loan Fund (DWSRF) and American Rescue Plan Act of 2021 (ARPA)

BE IT RESOLVED by the Claremont City Council, after a public hearing, duly noticed, that

WHEREAS, the City wishes to accept funds from the New Hampshire Drinking Water State Revolving Loan Fund (DWSRF) and American Rescue Plan Act of 2021 (ARPA) grant funds to complete projects relating to the removal of lead lines and otherwise deficient lines from the Claremont Water System; and

WHEREAS, in accordance with the "2022 Award Plan", the NH Drinking Water & Groundwater Advisory Commission requires that a funding application for the Construction Projects Assistance Program include an "authority to submit application" to meet the threshold for project readiness; and

WHEREAS, these actions are in response to the application acceptance; and

WHEREAS, the City presently has lead components in the water lines that provide service to the residents of Claremont; and

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WHEREAS, the City wishes to protect the health and wellbeing of its citizens by replacing all the lead water lines; and

WHEREAS, the City Lead Service and Water Main Replacement has been listed on the Drinking Water State Revolving Loan Fund (DWSRF) Project Priority List for financial assistance:

NOW, THEREFORE, BE IT RESOLVED by the City Council to authorize the city manager, or his designees, to take such actions as may be necessary to apply, accept, and expend \$2,500,000 from the NH Drinking Water State Revolving Fund with an estimated Principal Forgiveness of \$750,000; and accept \$350,000 from the American Rescue Plan Act of 2021 (ARP A) and enter into grant and loan agreements.

BE IT FURTHER RESOLVED that the City Manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be required to implement this resolution. *(2/3 vote required)*

A motion was made by Councilor Batchelder and seconded by Councilor Koloski to adopt resolution 2023-29.

Councilor Batchelder read resolution 2023-29 into the record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

Mooshian- yes

Contois- yes

Limoges- yes

Koloski-yes

Matteau- yes

Stone- yes

Batchelder- yes

O'Hearne- yes

Girard- yes

Motion carried 9-0

Fee Schedule

A Fee Schedule was presented to the Council with changes to the Fire Department and the Claremont Savings Bank Community Center from Parks and Recreation. Rich Synnott, the consultant for the CSBCC entered the Council meeting via Zoom.

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Director Lawrence, explained the changes that were made to the fee schedule, and after review the Council decided to make changes to the Parks and Recreation section.

PARKS AND RECREATION DEPARTMENT

Daily Admission			
	Resident (Adult)	\$5.00	\$7.00
	Resident (Youth and Senior Citizen)	\$3.00	\$4.00
	Non-Resident (Adult)	\$7.00	\$12.00
	Non-Resident (Youth)	\$5.00	\$7.00
	Non-Resident (Senior Citizen)	\$5.00	\$9.00
Facility Passes			
	Family Pass (up to 4) Annual	\$350.00	\$425.00
	Non- Resident Family Pass (up to 4) Annual	\$475.00	\$605.00
	Additional Family Member (After 4) Annual	\$75.00	
	Adult Pass Annual	\$250.00	\$300.00
	Non-Resident Pass Adult Annual	\$330.00	\$476.00
	Youth Pass Annual	\$130.00	\$165.00
	Non-Resident Youth Pass Annual	\$170.00	\$209.00
	College Pass Annual	\$130.00	\$165.00
	Non-Resident College Pass Annual	\$170.00	\$209.00
	Sr. Pass Annual	\$140.00	\$200.00
	Non-Resident Sr. Pass Annual	\$185.00	\$250.00
	3 Month Adult	-	\$150.00
	Non-Resident 3 Month Adult	-	\$200.00
	3 Month Youth/Sr	-	\$50.00
	3 Month Youth/Sr	-	\$50.00
	Non-Resident 3 Month Youth/Sr.	-	\$65.00
	Non-Resident 3 Month Youth/Sr.	-	\$65.00
	3 Month College Membership	-	\$50.00
	Non-Resident 3 Month College Membership	-	\$65.00
	-	-	-
12-Month Agreement (MTM)	-	-	-
Daily Admission			
	Resident (Adult)	\$5.00	N/A
	Resident (Youth and Senior Citizen)	\$3.00	N/A
	Non-Resident (Adult)	\$7.00	N/A
	Non-Resident (Youth)	\$5.00	N/A
	Non-Resident (Senior Citizen)	\$5.00	N/A
Facility Passes			
	Family Pass (up to 4) Monthly	\$350.00	\$37/month
	Non- Resident Family Pass (up to 4) Monthly	\$475.00	\$55/month
	Additional Family Member (After 4) Monthly	\$75.00	\$7/month

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	Adult Pass Monthly	\$250.00	\$26/month
	Non-Resident Pass Adult Monthly	\$330.00	\$34/month
	Youth Pass Monthly	\$130.00	\$15/month
	Non-Resident Youth Pass Monthly	\$170.00	\$19/month
	College Pass Monthly	\$130.00	\$15/month
	Non-Resident College Pass Monthly	\$170.00	\$19/month
	Sr. Pass Monthly	\$140.00	\$15/month
	Non-Resident Sr. Pass Monthly	\$185.00	\$19/month
	-	-	-
No Agreement/No Commitment	-	-	-
Daily Admission			
	Resident (Adult)	\$5.00	N/A
	Resident (Youth and Senior Citizen)	\$3.00	N/A
	Non-Resident (Adult)	\$7.00	N/A
	Non-Resident (Youth)	\$5.00	N/A
	Non-Resident (Senior Citizen)	\$5.00	N/A
Facility Passes			
	Family Pass (up to 4) Monthly	\$350.00	\$69/month
	Non- Resident Family Pass (up to 4) Monthly	\$475.00	\$79/month
	Additional Family Member (After 4) Monthly	\$75.00	\$7/month
	Adult Pass Monthly	\$250.00	\$50/month
	Non-Resident Pass Adult Monthly	\$330.00	\$67/month
	Youth Pass Monthly	\$130.00	\$19/month
	Non-Resident Youth Pass Monthly	\$170.00	\$25/month
	College Pass Monthly	\$130.00	\$19/month
	Non-Resident College Pass Monthly	\$170.00	\$25/month
	Sr. Pass Monthly	\$140.00	\$19/month
	Non-Resident Sr. Pass Monthly	\$185.00	\$25/month
	-	-	-
Independent Contractor	Personal Training Fee	\$300.00	
Locker Rental (1/2 Size Locker) Includes Towel Service and Lock			
	Resident Annual	\$60.00	\$70.00
	Non-Resident Annual	\$75.00	\$85.00
Grand Meeting Room	Special Event Conf Room (6 hours)	\$350.00	\$450.00
Minimum 6 hours			
Grand Meeting Room	Additional Hour(s)	\$58.00	\$65.00
Function Room A 1 hr	Regular Rate	\$19.00	\$27.50
Function Room B 1 hr	Regular Rate	\$27.00	\$37.50
Function AB 1 hr	Regular Rate	\$46.00	\$65.00
Function Room G 1hr	Regular Rate	\$21.00	\$27.50
Function Rooms require a minimum reservation block of two (2) hours. Department sponsored classes, program and event fees			
and admissions exist seasonally and are determined based on classes offered. Active members get a 10% discount.			
Vendor Permit without electricity at events (requires additional permit from City Manager)		\$75.00	per event
Vendor Permit with electricity at events (requires additional permit from City Manager)		\$95.00	per event
Reservation Fees			

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**Single Field Reservation (based on one hour of usage)	
Internal	N/C
Non-Profit Field Use	\$25.00 per hour
Hourly Charge with Lights	\$131.00 per hour w/lights
For-Profit Field Use	\$50.00 per hour
Hourly Charge with Lights	\$157.00 per hour w/lights
*/**Seasonal Games Field Reservation (One Field)	
Internal	N/C
Non-Profit Field Use	\$500.00
Hourly Light Charge	\$105.00 per hour w/lights

PARKS AND RECREATION DEPARTMENT (cont'd)

For-Profit Field Use	\$750.00
Hourly Light Charge	\$105.00 per hour w/lights
**Tournament Site Use	
Internal	N/C
Non-Profit Field Use	\$75.00 per day
Hourly Light Charge	\$105.00 per hour w/lights
For Profit Field Use	\$125.00 per day
Hourly Light Charge	\$105.00 per hour w/lights
**Camp/Clinic Site Use	
Internal	N/C
Non-Profit	\$75.00 per day
For-Profit	\$125.00 per day
#^Pavilion/Picnic Site/Band Stand (Other fees may be required)	
Internal	N/C
Non-Profit	\$25.00 per function
For-Profit	\$50.00 per function
** Arrowhead Lodge	
* Internal	
Non-Profit	\$50.00 per hour
For-Profit	\$75.00 per hour
<i>*Seasonal Field use fees are subject to change based on impact of usage requested. Seasonal reservations are based on 20 game hours. Additional game hours for Type I, II & III may be charged based on the impact of the request at a rate of \$25.00/hr. #Pavilion/Picnic Site/Band Stand reservations may require other fees. ^Band Stand requires additional permit from City Manager.</i>	
**Internal - Stevens High School Athletics agrees to contribute financially to the Parks &	

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<i>Recreation Department's field maintenance program, and in doing so, has agreed to collaboratively maintain and improve the quality of field and court usage and space. Stevens High School agrees to financially contribute to the costs associated to the activities and programs scheduled at City park locations.</i>		
** Arrowhead Lodge events must be requested at least 1-month in advance of the date of the function. * Charge includes facility supervision for the duration of the rental. Subject to cleaning and misc charges. <i>Non-Profit - Non-profit organizations, Claremont based schools and others listed within the Type</i> <i>If usage may contribute financially to the improvements of the facility requested. When doing so, the fee or portion of the fee for usage may be waived by the Director of Parks & Recreation.</i>		
Maintenance Fees	The following additional fees will be assessed for any custodial, maintenance, or grounds work that is required outside of the regular working hours (i.e. weekends and evenings). These fees will be itemized and billed to the reserving organization once the duration of the facility reservation is completed.	
Weekdays after 3:00 p.m.	\$73.00	Minimum 2 hours per person
Additional	\$36.00	per hour per person
Saturdays	\$73.00	Minimum 2 hours per person
Additional	\$36.00	per hour per person
Sundays & Holidays	\$147.00	Minimum 2 hours per person
Additional	\$39.00	per hour per person

PARKS AND RECREATION DEPARTMENT (cont'd)

Cleaning Fees	\$105.00	Minimum
Temporary Electrical Panel	\$125.00	
Miscellaneous Fees		

After Council made changes, they discussed tabling the Fee Schedule to another hearing for public comment or passing it.

Mayor Girard opened up a public hearing.

Elizabeth Grahm, Ward 1, agrees to bring the fee schedule back for public comment at the next meeting.

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A motion was made by Councilor O’Hearne and seconded by Councilor Koloski to table the Fee Schedule back for public comment at the next Council meeting.

Roll call:

Mooshian- yes

Contois- yes

Limoges- yes

Koloski-yes

Matteau- yes

Stone- yes

Batchelder- yes

O’Hearne- yes

Girard- yes

Motion carried 9-0

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Stone asked to see the entirety of the contracts when the Council votes on the union negotiations. Manager Manale agreed the Council will receive the blacklined version.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 9:08 p.m., a motion was made by Councilor O’Hearne and seconded by Councilor Batchelder to adjourn.

Voice Vote:

Mooshian- yes

Contois- yes

Limoges- yes

Koloski- yes

Matteau- yes

Stone- yes

Batchelder- yes

O’Hearne- yes

Girard- yes

Motion carried 9-0

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Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council

DRAFT